

Master Checklist: Required & Recommended Links

Document Name	Why you need it	US/IL Requirement	Document
Privacy Policy	Explains data handling.	Mandatory (GDPR/CCPA/IL Privacy Law)	Aivota Privacy Po...
Terms of Use / ToS	The legal contract with the user.	Mandatory (Commercial protection)	Aivota Terms of ...
Accessibility Statement	For users with disabilities.	Mandatory (Israeli Law / ADA in US)	Aivota Accessibili...
Cookie Policy	Explains tracking technologies.	Mandatory (EU/GDPR & US State Laws)	Cookie Policy
"Do Not Sell My Info"	For California users.	Mandatory (CCPA)	
DPIA Summary	Not a link, but a record.	Internal Requirement (GDPR/IL Privacy)	
Data Processing Addendum (DPA)	For B2B contracts (e.g., with schools).	Mandatory (If you process data for them)	

Analysis - Israeli Law

Israel has strict consumer protection and privacy regulations that dictate specific disclosures.

1. Accessibility Statement (הצהרת נגישות) - MANDATORY

Under the **Equal Rights for Persons with Disabilities Law** and its specific regulations (*Service*

Accessibility), any Israeli website providing a public service or information about it must include an Accessibility Statement.

- **Requirements:** It must detail the accessibility features implemented, contact info for the "Accessibility Coordinator," and any exemptions claimed.
- **Placement:** Usually linked in the footer.

2. Terms of Use (תקנון / תנאי שימוש) - MANDATORY/PRACTICAL

While not "mandated" as a single document by one law, the **Consumer Protection Law** and **Contracts Law** effectively require it to define the "rules of the road," refund policies, and liability limitations.

3. Privacy Policy (מדיניות פרטיות) - MANDATORY

The **Privacy Protection Law, 5741-1981**, requires informing users if you are collecting their data, for what purpose, and whether they are legally obligated to provide it (usually they are not).

Analysis - US Law (Federal & State)

For a US-facing company (especially one based in or serving California), the requirements are even more granular.

1. Privacy Policy - MANDATORY (CCPA/CPRA)

The **California Consumer Privacy Act (CCPA)** requires a specific link, often titled "**Do Not Sell or Share My Personal Information.**"

- **Requirements:** Detailed disclosure of data collection, third-party sharing, and user rights (deletion, correction).

2. Terms of Service (ToS) - MANDATORY

Protects the company from "Class Action" lawsuits via arbitration clauses and class-action waivers, which are generally enforceable in the US but scrutinized in Israel.

3. HIPAA / FERPA Disclosures - CONTEXTUAL

Since XAHAPH AI deals with health data (Rett Syndrome) and schools (Agam School), special



notices regarding how you handle **PHI (Protected Health Information)** and **Education Records** are necessary.

Comparative Insight

1. **Accessibility Focus:** Israel is significantly more aggressive than many US states in mandating a *written statement* on the site itself. In the US, the ADA (Americans with Disabilities Act) requires the *site* to be accessible, but the specific "Statement" is a best practice rather than a federal statutory mandate for all private sites (though required for government/public entities).
2. **DPIA (Data Protection Impact Assessment):** You mentioned "DPIA." This is an **internal document** required by the GDPR and recommended by the Israeli Privacy Protection Authority for high-risk processing (like AI and health data). You do **not** post the full DPIA online, as it contains security secrets. Instead, you might post a "Privacy Impact Summary" if you want to build trust.
3. **Jurisdiction:** In Israel, you must include your full corporate name and address. In the US, it is common to also include a "Notice at Collection."